Tokenum

PRIVACY POLICY

1. Scope and Introduction

This Privacy Policy ("Policy") is a legally binding document that governs how Djooky Finance Limited ("Company", "we", "us", or "our"), a company incorporated in British Columbia, Canada (Incorporation Number: BC1535602), operating under the brand name Tokenum, processes information.

As a Canadian entity registered with FINTRAC (registration number C100000967), we are committed to the highest standards of data protection. This Policy is designed to comply with the federal Personal Information Protection and Electronic Documents Act (PIPEDA), the Proceeds of Crime (Money Laundering) and Terrorist Financing Act (PCMLTFA), and British Columbia's Personal Information Protection Act (PIPA).

This Policy applies to:

- Users and Visitors: Any individual who accesses or uses the Tokenum website, mobile applications, or any other digital platforms operated by the Company;
- Applicants: Any individual who applies to open an account, regardless of whether the onboarding process is successfully completed;
- Beneficial Owners and Representatives: Individuals who exercise ultimate control over a transaction or an account, or on whose behalf a transaction is conducted (in accordance with PCMLTFA requirements regarding "Beneficial Ownership");
- Other Counterparties: Any individual who provides personal information to the Company in the course of our business operations, including authorized representatives or third parties involved in transaction monitoring.

2. Key Definitions

To ensure transparency, the following terms are used in this Policy:

- "Personal Information": Information about an identifiable individual, including any factual or subjective information about that individual, but does not include business contact information used for business communication.
- "Processing": Any operation performed on personal data, such as collection, recording, organization, storage, consultation, use, disclosure, or destruction.
- "PIPEDA": The Canadian federal law that sets out rules for how private-sector organizations must handle personal information in the course of commercial activity.
- "FINTRAC": The Financial Transactions and Reports Analysis Centre of Canada, our primary AML/CTF regulator.

3. Categories of Information We Collect

3.1. Identity and Verification Data (KYC)

For compliance with PCMLTFA, we collect data that establishes your identity beyond doubt:

- Full Legal Name: Including any aliases or former names.
- Date of Birth: To verify age of majority in your province/country.
- Nationality and Residency: To determine geographical risk factors.
- Government Identifiers: High-resolution scans (front and back) of a valid Passport, National ID card, or Driver's License. We collect the document number, expiry date, and issuing authority.
- Visual/Biometric Data: Photographs and/or video recordings of the user (e.g., "liveness checks" or "selfie with ID") to prevent impersonation fraud.

3.2. Contact and Residential Data

- Primary Contact details: Email address and verified mobile phone number.
- Residential Address: Full physical address (P.O. Boxes are generally not accepted).
- Proof of Residency: Scans of utility bills, bank statements, or government correspondence issued within the last 3-6 months.

3.3. Financial and Economic Profile

- Wealth/Funds Information: Data regarding the source of wealth and source of funds (e.g., salary, investment income, sale of assets).
- Banking Data: Bank account numbers (IBAN), SWIFT codes, and institutional names for fiat-to-crypto operations.
- Digital Asset Data: Public wallet addresses, transaction hashes, and metadata associated with your cryptocurrency transfers.
- Employment Data: Occupation, job title, and employer's name to comply with "Know Your Customer's Business" requirements.

3.4. Technical and Behavioral Data (Automatic)

As you interact with Tokenum, we automatically log:

- Network Identifiers: IP addresses (including static/dynamic), MAC addresses, and proxy/VPN detection data.
- Device Metadata: Device type, OS version, browser version, screen resolution, and time zone settings.
- Interaction Logs: Clickstream data, pages viewed, time stamps of sessions, and referral URLs.

4. Legal Basis for Processing

In accordance with PIPEDA, Djooky Finance Limited (Tokenum) processes your personal information only when we have a valid legal basis to do so. These bases include:

- Consent: Where you have given clear and informed consent for us to process your data for a specific purpose (e.g., marketing).
- Contractual Necessity: Where processing is required to perform the services outlined in our Terms of Service.
- Legal Obligation: Where we are mandated by Canadian federal or provincial laws (specifically AML/CTF statutes) to collect and report data.
- Legitimate Interests: Where processing is necessary for our legitimate business interests, such as preventing fraud, ensuring network security, and improving our platform, provided these interests do not override your fundamental privacy rights.

5. Detailed Purposes of Processing

5.1. Compliance with Canadian AML/CTF Regulations

As a registered MSB, our primary purpose is to maintain the integrity of the Canadian financial system. We use your Identity, Residential, and Financial Data to:

- Perform mandatory identity verification (KYC) prior to onboarding;
- Conduct sanctions screening against applicable lists, including:
  - Canadian sanctions administered by OSFI and Global Affairs Canada;
  - The UK Financial Sanctions List (OFSI);
  - The U.S. sanctions lists administered by OFAC;
  - The United Nations (UN) Security Council Sanctions List;
  - High-risk and non-cooperative jurisdictions identified by the Financial Action Task Force (FATF);
- Identify Politically Exposed Persons (PEPs), their family members, and Heads of International Organizations (HIOs);
- Monitor transactions on an ongoing basis to detect and report Suspicious Transaction Reports (STRs) to FINTRAC;
- Verify the Source of Funds (SOF) and, where required, Source of Wealth (SOW) for large or unusual transactions to prevent money laundering and terrorist financing.

5.2. Provision and Management of Services

We use your Contact, Financial, and Technical Data to:

- Facilitate the purchase, sale, and exchange of digital assets.
- Process fiat deposits and withdrawals via secondary banking partners.
- Send critical account notifications, such as transaction confirmations, multi-factor authentication (2FA) verification codes, and security-related alerts (e.g., login notifications from unrecognized devices).
- Provide customer support and resolve technical or financial disputes.

5.3. Fraud Prevention and Platform Security

To protect our users and our infrastructure, we process Behavioral and Technical Data to:

- Detect and block unauthorized access, hacking attempts, account takeovers, and other security threats;
- Evaluate device fingerprinting, IP intelligence, and behavioral patterns to identify botnets, automated abuse, or malicious actors;
- Perform blockchain analytics and transaction monitoring to assess wallet risk and ensure that funds do not originate from, or are not destined for, illicit or high-risk sources, including but not limited to:
  - Darknet markets and illegal marketplaces;
  - Anonymizing services such as mixers, tumblers, and privacy-enhancing technologies;
  - Stolen funds, compromised wallets, or ransomware-related addresses;
  - Unregulated or high-risk gambling and betting platforms;
  - Unlicensed or non-compliant virtual asset service providers (VASPs) and high-risk peer-to-peer platforms;
  - Sanctioned individuals, entities, or restricted jurisdictions;
  - Fraud schemes, scams, or other forms of financial crime.

5.4. Personalization and Service Improvement

Based on your Interaction Logs and Usage Data, we aim to:

- Optimize the user interface (UI) and user experience (UX) of the Tokenum platform.
- Troubleshoot software bugs and hardware compatibility issues.
- Perform internal research and statistical analysis on market trends (using anonymized or aggregated data where possible).

5.5. Marketing and Communications

If you have provided explicit opt-in consent, we may use your Contact Data to:

- Send newsletters, promotional offers, and updates about new features or listed assets.
- Conduct surveys or market research to improve our value proposition.
- Note: You may revoke this consent at any time without affecting your access to the core services.
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6. Automated Decision-Making and Profiling

Tokenum may use automated systems to monitor transactions and assess risk profiles (e.g., scoring a transaction as "high risk" based on its destination or patterns).

- If an automated decision results in the suspension of your account, you have the right to request a manual review by our compliance team.
- We do not use automated decision-making for purposes that have a significant legal effect on you, unless such processing is authorized by law or is necessary to ensure compliance with our platform's rules and security standards.
- Specifically, we reserve the right to apply automated restrictions to prevent fraud, address suspicious activity, or mitigate breaches of these Terms and Conditions.

7. Disclosure of Personal Information

Djooky Finance Limited (Tokenum) does not sell, rent, or trade your Personal Information to third parties for their marketing purposes. We disclose your data only to the following categories of recipients, strictly for the purposes:

7.1. Identification and Verification Providers

We share your Identity and Biometric data with specialized third-party service providers (e.g., identity verification platforms) to perform automated KYC checks, "liveness" tests, and database screening against global sanctions lists. These providers are contractually obligated to use the data only for the purpose of verification and must adhere to strict security protocols.

7.2. Banking, Payment Partners and Service Providers

To facilitate fiat-to-crypto operations (CAD/USD/EUR deposits and withdrawals), we may disclose your Identity and Financial Data to our banking partners, credit card processors, and payment gateways. In addition, we may share relevant information with trusted service providers, including payment facilitators (e.g., on/off-ramp providers), technical infrastructure providers, and compliance vendors, as well as with external auditors, consultants, and professional advisers, where reasonably necessary and justified. These parties may perform their own independent compliance checks as required by applicable laws and regulations.

7.3. Blockchain Analytics and Security Firms

We may provide your public wallet addresses and related transaction metadata to specialized blockchain analytics and forensic service providers. This is necessary to assess transaction risk and ensure that funds interacting with the Tokenum platform are not associated with money laundering, terrorist financing, fraud, sanctions violations, or other illicit or high-risk activities.

7.4. Regulatory and Law Enforcement Authorities

As a registered MSB, we have a mandatory legal obligation to disclose information to:

- FINTRAC: For Large Cash Transaction Reports (LCTRs) and Suspicious Transaction Reports (STRs).
- Law Enforcement Agencies: In response to valid warrants, subpoenas, or court orders issued by Canadian or authorized international courts.
- Tax Authorities: (e.g., Canada Revenue Agency) where we are legally mandated to report specific financial activities.

7.5. Internal Professional Advisers

We may share limited data with our legal counsel, auditors, and professional insurers to protect the Company's legal rights, ensure financial transparency, and mitigate operational risks.

8. International Data Transfers

Personal Information collected by Tokenum may be stored and processed in Canada or any other country where our service providers maintain facilities (e.g., cloud hosting in the USA or EU).

8.1. Safeguards for Cross-Border Transfers

When your data is transferred outside of Canada, we ensure a comparable level of protection through:

- Standard Contractual Clauses: Mandatory privacy and security requirements in agreements with non-Canadian vendors.
- Accountability: We remain responsible for the protection of your data regardless of its location.
- Legal Jurisdiction: Please note that when data is stored in a foreign jurisdiction, it may be subject to the laws of that country, including the right of foreign governments, courts, or law enforcement to obtain disclosure under local regulations.
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9. Business Transfers

In the event that Djooky Finance Limited undergoes a corporate reorganization, merger, sale, or acquisition, your Personal Information may be transferred as part of the business assets. In such a scenario, the successor entity will be bound by this Privacy Policy or will be required to provide a new policy with a comparable level of protection.

10. Data Retention Policy

Djooky Finance Limited (Tokenum) does not store your Personal Information longer than is necessary for the purposes for which it was collected, or as required by law.

10.1. Regulatory Retention (FINTRAC/AML)

In accordance with the Proceeds of Crime (Money Laundering) and Terrorist Financing Act (PCMLTFA), we are legally mandated to retain specific records for a minimum period of five (5) years. This includes:

- Identification Records: Copies of ID documents and verification results, starting from the date the account is closed.
- Transaction Records: Details of all fiat and cryptocurrency transfers, starting from the date the transaction was completed.
- Reporting Records: Copies of any reports submitted to FINTRAC (STRs, LCTRs).

10.2. General Retention

Information that is not subject to AML retention (e.g., marketing preferences or general inquiries) is retained only as long as the account is active or as needed to provide support, after which it is deleted or permanently anonymized.

11. Data Security and Protection

We employ advanced technical and organizational measures to safeguard your Personal Information against loss, theft, unauthorized access, or modification.

11.1. Technical Safeguards

- Encryption: Use of Transport Layer Security (TLS) and Advanced Encryption Standard (AES-256) for data at rest and in transit.
- Access Control: Strict "need-to-know" access policies for employees, protected by Multi-Factor Authentication (MFA).
- Network Security: Use of firewalls, Intrusion Detection Systems (IDS), and regular penetration testing.

11.2. Organizational Safeguards

- Employee Training: Mandatory privacy and security training for all staff handling user data.
- Confidentiality Agreements: All employees and contractors must sign non-disclosure agreements (NDAs) as a condition of their engagement.

12. Your Rights Under PIPEDA

As a resident of Canada (or as a user of a Canadian platform), you have specific rights regarding your Personal Information:

12.1. Right to Access

You have the right to request a copy of the Personal Information we hold about you. We will provide this information in a structured, commonly used format within 30 days of receiving your request. In complex cases, we may extend this period by another 30 days with prior notice.

12.2. Right to Correction (Accuracy)

We rely on you to keep your information up to date. You have the right to challenge the accuracy and completeness of your data and have it amended as appropriate.

12.3. Right to Withdraw Consent

You may withdraw your consent for data processing at any time (e.g., opting out of marketing). Please note that withdrawing consent for KYC/AML processing will require the Company to terminate its services to you and close your account.

12.4. Right to Information

You have the right to be informed about how your data is used, who has access to it, and how we protect it. This Privacy Policy serves as the primary tool for this transparency.

12.5. Right to File a Complaint

If you believe that we have not complied with this Policy or our obligations under PIPEDA, you are encouraged to contact our Privacy Officer. If you remain unsatisfied, you have the right to contact the Office of the Privacy Commission of Canada (OPC).

13. Verifying Your Identity for Requests

To protect your privacy, when you exercise your rights (e.g., requesting access to data), we may require you to provide additional information to verify your identity. We will not process requests that we cannot authenticate.

14. Cookies and Web Tracking Technologies

Djooky Finance Limited (Tokenum) uses cookies, web beacons, and similar technologies to enhance your experience, maintain security, and analyze platform performance.

14.1. Types of Cookies We Use

- Essential Cookies: Required for the operation of the platform. They enable core functions like secure login, session management, and load balancing. The platform cannot function correctly without these.
- Analytical/Performance Cookies: These allow us to recognize and count the number of visitors and see how they move around the platform. This helps us optimize navigation and fix technical issues.
- Functionality Cookies: Used to recognize you when you return to the platform, allowing us to greet you by name and remember your preferences (e.g., language or currency choice).

14.2. Managing Cookies

You can block or delete cookies through your browser settings. However, please be aware that disabling essential cookies may prevent you from accessing secure areas of the Tokenum platform or completing transactions.

15. Mandatory Data Breach Notification

In accordance with the Digital Privacy Act (amendments to PIPEDA), we have strict protocols for handling security incidents involving personal information.

15.1. Assessment of Risk

In the event of an unauthorized access, loss, or disclosure of data, we will immediately conduct an assessment to determine if the breach poses a "Real Risk of Significant Harm" (RROSH) to any individual. Significant harm includes identity theft, financial loss, damage to reputation, or fraud.

15.2. Notification Process

If a RROSH is identified, the Company will:

- Report to the Privacy Commissioner: Notify the Office of the Privacy Commissioner of Canada (OPC) as soon as feasible.
- Notify Affected Individuals: Inform you directly (via email or platform notification) without undue delay. The notice will include the nature of the breach, the data involved, steps we are taking, and actions you should take to protect yourself.
- Record Keeping: Maintain a record of all data breaches for a minimum of 24 months, regardless of whether they met the RROSH threshold.

16. Protection of Minors

Tokenum does not knowingly collect personal information from individuals under the age of 18 (or the age of majority in their respective Canadian province). If we become aware that a child has provided us with personal information, we will delete it immediately and terminate any associated accounts.

17. Links to Third-Party Websites

Our platform may contain links to third-party websites (e.g., news articles or partner services). This Privacy Policy applies only to Tokenum. We are not responsible for the privacy practices or content of external sites, and we encourage you to read their policies before providing any data.

18. Updates to This Privacy Policy

We may revise this Policy periodically to reflect changes in our practices or Canadian law.

- The "Effective Date" at the top of this document will indicate the date of the latest update.
- If we make material changes, we will notify you through a prominent notice on the platform or via the email address associated with your account.
- Continued use of the platform after an update constitutes acceptance of the revised Policy.

19. Contacting our Privacy Officer

If you have questions, wish to exercise your rights, or have a concern about how your data is handled, please reach out to our dedicated compliance department:

Djooky Finance Limited (Tokenum)
Attn: Privacy Officer (Compliance Unit)
Email: support@tokenum.com
Mailing Address: 5780 Victoria Drive, Unit #123, Vancouver, British Columbia, V5P 3W7, Canada

By using Tokenum services, you confirm that you have read, understood, and agreed to this Privacy Policy.